Privacy Policy

(Last Updated: August 13, 2025)

This Privacy Policy (“Policy”) applies to users of the GemSpace platform (“Platform” or “GemSpace”) operated by Marketspace Solutions OU (“us”, “we”, or “our”), a company incorporated under the laws of the Republic of Estonia with its registered address at Harju maakond, Tallinn, Kesklinna linnaosa, Vesivärava tn 50-301, 10152. This Policy describes the terms and conditions regarding the processing of your personal data, provides you with information about your rights, and explains how, why, and when we process your personal data.

Please read this Policy carefully. By registering for or using the Platform, you confirm that you have read, understood, and accept the terms and conditions of data processing set out in this Policy. If you do not accept this Policy in full, you will not be able to use the Platform.

This Privacy Policy applies to all versions of the GemSpace platform, including the web version, the mobile applications for Android and iOS devices, and any other interfaces or versions through which GemSpace services are provided. Regardless of the method used to access the platform, your use of any version constitutes your full acceptance of the terms and conditions set forth in this Policy.

This Policy is based on the principles established by the Regulation (EU) 2016/679 of the European Parliament and of the Council (the General Data Protection Regulation or the GDPR) and other applicable data protection laws.

In this Policy:

- **“You” or “User”** refers to individuals who register for or use the Platform.
- **“Data”** refers to any information you provide during registration and use of the Platform. This data, or any combination thereof, may constitute your personal data under the laws of certain territories and countries. When we refer to personal data, we mean any information relating to an identified or identifiable natural person. This excludes any data that has been anonymized or depersonalized to the extent that an individual cannot be identified or recovered.
- **“Processing”** means any operation or set of operations performed on your Data, whether or not by automated means, such as collection, storage, organization, structuring, alteration, retrieval, consultation, use, disclosure, dissemination, or any other form of access, as well as alignment, combination, restriction, erasure, or destruction.

By using the Platform, you acknowledge and agree to the processing of your personal data in accordance with this Policy and applicable data protection laws. If you have any questions or concerns regarding this Policy or our data processing practices, please contact us at the details provided on the Platform.

1. Who We Are

Marketspace Solutions OU is a company duly incorporated under the laws of the Republic of Estonia, with its registered address at Harju maakond, Tallinn, Kesklinna linnaosa, Vesivärava tn 50-301, 10152.

With respect to your personal data, we act as the primary data controller for GemSpace platform operations. This means we determine the purposes and means of processing your personal data and bear the responsibility for it under applicable law. For certain marketing activities, we may share your personal data with independent third-party controllers, including GN Telecom UK Limited, who process your data for their own business purposes under separate legal arrangements.

If you have any questions regarding this Privacy Policy or if you wish to exercise any of your rights concerning your personal data, please contact us at support@gemspace.com.

With respect to your personal data, we act as the data controller. This means we determine the purposes and means of processing your personal data and bear the responsibility for it under applicable law. As the data controller, we are committed to providing you with detailed information about the data we hold and to responding to any inquiries or requests related to this Privacy Policy.

2. Legal Basis for Processing Your Personal Data

Gem Space processes your personal data in compliance with applicable data protection laws, including the GDPR. We ensure that every processing activity is based on a valid legal basis, which may include one or more of the following:

a. Legitimate Interests:

In many cases, we process your data on the basis of our legitimate interests. This includes ensuring the security, functionality, and improvement of the Gem Space Platform. Before proceeding with such processing, we conduct a balancing test to ensure that our interests are not overridden by your rights and freedoms. Legitimate interests may cover activities such as fraud prevention, system maintenance, and performance analysis.

b. User Consent:

For certain types of data processing, particularly when handling sensitive data or processing data for purposes that are not strictly necessary for the provision of our services, we obtain your explicit consent. This includes, for example, marketing communications or enabling additional features that require extra personal data. You have the right to withdraw your consent at any time, and doing so will not affect the lawfulness of processing carried out before your withdrawal.

c. Contractual Necessity:

When processing is necessary for the performance of a contract to which you are a party, such as managing your account or processing transactions, we rely on this legal basis. The processing activities in this context are limited to what is required to fulfill the terms of the contract.

d. Legal Obligations:

In certain circumstances, we process your data in order to comply with our legal obligations, such as record-keeping, responding to regulatory requests, or fulfilling tax and financial reporting requirements. In these instances, the processing is strictly limited to the extent necessary to meet those obligations.

e. Data Sharing with Third-Party Controllers:

For sharing personal data with independent third-party controllers like GN Telecom UK, we rely on your explicit consent under Article 6(1)(a) GDPR. This consent is: - Freely given and specific to each recipient - Informed with clear information about the third party's identity and purposes - Withdrawable at any time without affectin

We process your personal data strictly on the legal basis that is necessary for safeguarding and advancing our legitimate interests. In particular, we process your data for the following purposes:

a. Provision and Enhancement of Services:
   To develop, maintain, and continuously improve the functionality and security of the GemSpace platform, ensuring that you receive efficient, innovative, and high-quality services.

b. Fraud Prevention and Security Assurance:
   To detect, prevent, and address any fraudulent activities or security threats that may affect the platform, our users, or any other stakeholders.

Our processing of personal data is conducted in such a manner that our legitimate interests are not disproportionally overridden by your rights and freedoms under applicable data protection laws. In the event of any conflict, we reserve the right to make decisions that best protect the operation and security of the GemSpace platform.

With your explicit consent, Marketspace Solutions OU may share your personal data with GN Telecom UK Limited (registered in England and Wales) for their independent marketing activities.

Legal Basis: Article 6(1)(a) GDPR - Your explicit consent for data sharing

Data Shared: - Contact information (email address, phone number) - Basic profile data (username, user preferences) - Platform usage analytics (anonymized where possible) - Communication preferences and interaction history

Purpose of Third-Party Processing: GN Telecom UK will use this data as an independent data controller to: - Send marketing communications about their products and services unrelated to GemSpace - Conduct customer analytics for their own business purposes - Provide personalized offers for financial, technology, and business services - Build customer profiles for their independent marketing database

Independent Controller Status:

GN Telecom UK acts as a separate, independent data controller: - They determine their own marketing purposes and processing methods - They maintain their own legal basis for processing your data - They are independently responsible for GDPR and UK data protection compliance - They operate under their own data protection policies and procedures - No joint liability exists between Marketspace Solutions OU and GN Telecom UK.

3. What Personal Data We Use

3.1. Basic Account Information

When you register for and use a GemSpace account, you provide a minimal set of data necessary for identification and interaction with other users. This may include your mobile phone number, username, profile picture, and other details that you choose to display in your profile. These details are used for:

a. User Identification: Ensuring secure access to our services.

b. Facilitating Communication: Helping you connect and interact with other users on the platform.

c. Profile Customization: Allowing you to set up a public profile that other users can recognize, without requiring additional personal details unless you voluntarily provide them.

3.2. You may choose to voluntarily provide additional data, such as:

a. Birthdate: Adding your birthdate to your profile may be used to verify age restrictions for certain content. You control who can see this information.

3.3. Email Address

When you enable additional security features (for example, two-factor authentication or account recovery), you may be asked to provide an email address. This email address is used exclusively for:

a. Account Recovery: Sending a password recovery code if you lose access.

b. Alternative Login Options: Facilitating login via third-party services (such as "Sign in with Google" or "Sign in with Apple").

The email address provided for authentication purposes is stored separately and used only for sending recovery or authentication codes. It will be retained until you update it or delete your account.

3.4. Messaging, Public Content

3.4.1. Chats

All messages, photos, videos, and documents sent via our messaging service (“Chats”) are stored on GemSpace servers. This storage mechanism enables you to access your data seamlessly from any device, providing enhanced convenience and continuity of service. GemSpace employs industry-standard security measures and advanced encryption protocols during both data transit and storage. However, please be aware that, unlike end-to-end encryption, our Chats do not preclude the possibility of data access in response to legitimate legal requests or in the event of a security incident. By using our platform, you acknowledge and accept that the protection of your communications is subject to these technical and legal constraints, and GemSpace shall not be held liable for any unauthorized access or disclosure arising from circumstances beyond our reasonable control.

3.4.2. Public Chats and Channels

Content posted in public chats or channels is stored on our servers and is, by design, accessible to all users of the platform. Publicly shared information is subject to standard encryption during transit and storage; however, once posted publicly, such content is inherently available to any member of the GemSpace community. Users are solely responsible for the content they choose to share in public areas. GemSpace expressly disclaims any liability for the public dissemination of user-generated content and reserves the right to remove or moderate any content that violates our terms of use or applicable laws, without incurring any liability for such actions.

3.5. Phone Number and Contacts

Your mobile phone number is used as a unique identifier for your GemSpace account, facilitating a smooth transition from other messaging platforms and helping you maintain your network of contacts.

With your consent, we may synchronize your contacts to:

a. Notify you when your contacts join GemSpace.

b. Display the names of your contacts in notifications and within the application interface.

Only the minimal necessary data (phone numbers and names) is stored to support this functionality. You may disable contact synchronization or delete your synchronized contacts at any time via the settings.

3.6. Location Data

If you share your location within a chat, GemSpace treats that data with the same security measures as other types of messages.

3.7. Cookies

For users accessing GemSpace via the web, we use only those cookies that are essential for the operation and enhancement of our services. These cookies help us:

a. Ensure the proper functioning of the platform.

b. Customize and personalize your user experience.

We do not use cookies for profiling or advertising purposes. You may control or block cookies through your browser settings; however, please note that disabling these cookies may affect your ability to log in to GemSpace Web and could limit certain functionalities.

4. How We Use Information

We use the information we collect from you - subject to your preferences and applicable law - to operate, maintain, and improve the services provided by GemSpace. Specifically, your information is used in the following ways:

4.1. Providing and Enhancing Our Services

a. Service Operation:
We rely on your information to deliver and manage our services, including processing transactions, managing your account, and providing customer support.

b. Service Improvement:
Your usage data helps us understand how users interact with GemSpace, allowing us to optimize performance, troubleshoot issues, and develop new features to enhance your experience.

c. Customization:
Information about your interactions with the platform enables us to tailor our services to better meet your needs and preferences.

4.2. Safety, Security, and Integrity

a. Account Verification and Activity Monitoring:
We use your information to verify account authenticity, monitor activity, and detect any suspicious behavior, ensuring that the platform remains secure.

b. Prevention of Abuse:
Your data is instrumental in identifying and combating harmful conduct, including spam and fraudulent activities, thereby protecting all users.

c. Policy Enforcement:
We may use your information to investigate and address potential violations of our Terms and Policies, ensuring that GemSpace remains a safe and reliable environment for everyone.

4.3. Communications and Notifications

a. Service Updates:
We use your information to notify you about changes to our services, updates to our Terms and Policies, and other important account-related information.

b. Marketing and Promotional Communications:
Internal Marketing (GemSpace Services): With your consent, we may send you information about GemSpace services and related platform offerings. You can manage your communication preferences or opt out of these messages at any time. Third-Party Marketing (Independent Controllers):With separate explicit consent, we may share your data with third-party controllers like GN Telecom UK for their independent marketing purposes. These entities will contact you directly according to their own marketing policies and legal obligations.

4.4. No Third-Party Banner Ads

Ad-Free Commitment:
GemSpace is dedicated to providing an uninterrupted user experience. We do not display third-party banner ads on our services and have no plans to introduce them. Should this policy change, we will update this Privacy Policy to reflect any new practices.

5. Data Storage on Google Servers

5.1. Storage on Google Cloud:
GemSpace utilizes Google Cloud services to store and process personal data. This means that your data is hosted on Google servers, which are maintained in globally distributed data centers. These data centers are designed to offer high levels of availability, redundancy, and security.

5.2. Compliance with Data Protection Standards:
Google Cloud complies with the General Data Protection Regulation (GDPR) and has implemented extensive technical and organizational measures to ensure that personal data is processed securely and in accordance with EU data protection requirements. Key elements of Google Cloud’s compliance include:

a. Data Processing Agreements and Standard Contractual Clauses:
We have entered into Data Processing Agreements with Google, which incorporate Standard Contractual Clauses approved by the

European Commission. These agreements ensure that any personal data transferred to and stored on Google Cloud servers is subject to the same level of protection as required by the GDPR.

b. Technical and Organizational Security Measures:
Google Cloud employs industry-standard security practices such as encryption of data in transit (using HTTPS/TLS) and at rest, robust access controls based on the principles of least privilege and need-to-know, regular security audits, and continuous monitoring of its systems. These measures help protect your personal data against unauthorized access, alteration, or disclosure.

c. Certification and Audits:
Google Cloud has achieved numerous internationally recognized certifications, including ISO/IEC 27001, ISO/IEC 27017 (Cloud Security), and ISO/IEC 27018 (Cloud Privacy). These certifications demonstrate that Google Cloud meets high standards for information security and data privacy.

d. International Data Transfers:
While Google Cloud data centers are located in multiple jurisdictions, including within the European Economic Area (EEA), any transfer of personal data outside the EEA is carried out in accordance with GDPR requirements. This is ensured by contractual safeguards and mechanisms such as the Standard Contractual Clauses, which provide a legally approved framework for cross-border data transfers.

e. Support for Data Subject Rights:
Google Cloud's administrative tools and services are designed to assist us in fulfilling our obligations under the GDPR. This includes helping us respond to data subject requests for access, correction, deletion, or portability of personal data, in accordance with your rights.

5.3. Your Data and Our Responsibility:
While Google Cloud serves as our data storage and processing partner, GemSpace remains the data controller and is responsible for determining the purposes and means of processing your personal data. We work closely with Google to ensure that all data processing activities on its infrastructure comply with applicable data protection laws, including the GDPR.

By using the GemSpace Platform, you acknowledge and consent that your personal data may be stored and processed on Google Cloud servers under the robust security and compliance framework described above.

6. Who Your Personal Data May Be Shared With

6.1. Other GemSpace Users

Your personal data may be shared with other users of our Services with whom you choose to communicate or exchange information. Such users may be located both within and outside the European Economic Area (EEA). By using GemSpace and engaging in communication with other users, you instruct us to transfer certain personal data on your behalf. While we implement appropriate technical and organizational

measures to protect your data during transmission (including standard encryption methods), please be aware that once you share information with other users, you may lose control over its further distribution. GemSpace is not responsible for any additional sharing or processing of that data by third parties without your knowledge or consent.

6.2. GemSpace Group Companies

To provide, improve, and support our Services, we may share your personal data with our affiliated group companies.

6.3. Independent Third-Party Controllers

GN Telecom UK Limited (with your explicit consent)
- Relationship: Independent data controller - NOT a processor acting on our behalf
- Data shared: Contact details, basic profile information
- Purpose: Their own marketing campaigns for non-GemSpace products and services
- Legal basis: Your explicit consent (Article 6(1)(a) GDPR)
- Your rights: Exercise data protection rights directly with GN Telecom UK under UK GDPR
- Their obligations: Independent GDPR/UK data protection compliance
- Contact: 1 Giltspur Street, Farringdon, London, United Kingdom, EC1A 9DD. info@gntelecomltd.com
- Data Sharing Conditions: - Separate consent required specifically for GN Telecom UK - Consent withdrawal does not affect your GemSpace account - No joint processing or shared liability between companies - Each entity responsible for their own data protection compliance

6.4. Law Enforcement Authorities

In the event that GemSpace receives a valid legal request or order from competent judicial or law enforcement authorities - particularly in cases where there is a reasonable suspicion that your account is involved in criminal activities or violations of our Terms of Service - we may conduct a legal review of the request and, if required, disclose your personal data (such as your IP address and registered phone number) to the relevant authorities. Any such disclosures will be documented and may be included in our periodic transparency reports, subject to applicable law.

6.5. Translation of Chats at the Request of the User

GemSpace may offer a translation feature to convert your text messages into your preferred language. When you choose to use this feature, the following process takes place:

Data Transferred:

Only the content of the message you wish to translate is transmitted to the designated third-party service provider (for example, Google LLC or its affiliates). No additional personal data (such as your IP address, account details, or metadata) is shared during this process.

Legal Basis and User Consent:

The transfer of data for translation is based on your explicit consent when you activate the translation feature. By choosing to translate a message, you acknowledge and agree to the processing of the text solely for this purpose.

Protection Mechanisms and Contractual Guarantees:

The third-party provider is contractually obligated to use the transmitted data exclusively for providing the translation service. Standard contractual clauses or equivalent legal safeguards are in place to ensure that the data is protected in accordance with GDPR requirements. The provider implements robust technical and organizational measures, such as encryption during transit and strict access controls, to prevent unauthorized access or disclosure of your data.

Transparency:

GemSpace ensures that you are fully informed about this data transfer. The translation service will only process data necessary for generating the translation, and you can review our Privacy Policy or contact our Data Protection Officer for further details about the safeguards in place.

6.5. Transcription of Voice and Video Messages at the Request of the User

For your convenience, GemSpace may offer a transcription service for voice and video messages. If you elect to use this feature, the following provisions apply:

Data Transferred:

The audio content of your voice or video message will be sent to a third-party service provider (for example, Google LLC or its affiliates) solely for the purpose of generating a text transcript. Only the audio data strictly necessary for transcription is shared. No additional personal data, such as your IP address, account details, or location data, is transmitted.

Legal Basis and User Consent:

The transmission of audio data for transcription is conducted based on your explicit consent. By opting to use the transcription service, you confirm that you understand and agree to the processing of your audio data for the creation of a transcript.

Protection Mechanisms and Contractual Guarantees:

Under our contractual agreement with the third-party provider, they are legally bound to process the audio data only for the transcription service and to refrain from logging, storing, or using the audio or resulting transcript for any other purposes, including targeted advertising.

The agreement incorporates standard contractual clauses or other legally approved safeguards to ensure that the data is handled in compliance with GDPR requirements.

The provider employs industry-standard security measures, such as encryption in transit and at rest, and strict access controls to safeguard your data from unauthorized access or misuse.

Cost Coverage and Transparency:

GemSpace covers any associated costs for the transcription service, and you will be clearly informed about this process when you opt in. Detailed information regarding how your data is processed during transcription is available upon request or can be reviewed in our Privacy Policy.

7. Your Rights Regarding the Personal Data You Provide to Us

7.1. Your Rights

Under applicable data protection laws, you are entitled, in certain circumstances, to exercise rights in relation to the personal data we hold about you. These rights include the right to:

a. Access Your Data:
Request a complete copy of the personal data we maintain about you and, if desired, receive that information in a portable format for transfer to another data controller.

b. Data Correction and Update:
Request the correction of any inaccurate or incomplete personal data we hold about you.

c. Data Deletion:
Request the deletion of your personal data (subject to the limitations described in Section 10 below).

d. Restrict or Object to Processing:
Request that we restrict or, in certain circumstances, cease the processing of your personal data.

e. Lodge a Complaint:
File a complaint with the relevant national data protection authority if you believe that our processing of your personal data infringes applicable data protection laws.

7.2. Exercising Your Rights

If you wish to exercise any of these rights, please contact us using the details provided herein. We will assess your request in accordance with applicable law and respond within the legally required timeframe.

7.3. Data Settings

GemSpace provides you with control over how your personal data is used. For example, you can manage settings such as contact synchronization, privacy options, and other preferences directly through the GemSpace mobile application by navigating to Settings > Privacy & Security > Data Settings.

8. Termination

You have the right to terminate your relationship with GemSpace at any time. Termination of your use of our Services will result in the deletion of your account and the associated personal data, subject to the conditions outlined below.

8.1. How to Terminate Your Account

To permanently delete your account and remove your personal data from our systems, you must complete the account deletion process by navigating to Settings > Account > Delete Account within the GemSpace application. Please note that simply uninstalling the application or discontinuing use of the web version does not automatically delete your account.

8.2. Impact on Your Privacy Rights

By terminating your account, you acknowledge that GemSpace will cease further processing of your personal data except where required to retain certain information for legal, regulatory, or administrative purposes. Any data retained for such purposes will continue to be protected in accordance with this Privacy Policy and applicable law.

8.3. Data Retention and Deletion Policy

In addition to the provisions above, the following data retention and deletion practices apply upon termination of your account:

8.3.1. Retention Periods:

a. Active Data: Personal data associated with your active account will be maintained until you initiate the deletion process.

b. Post-Deletion Retention: After you request account deletion, data will be removed from active systems within 30 days. However, residual copies in backups may be retained for up to 60 days before being permanently purged.

c. Legal and Regulatory Requirements: Certain categories of data (e.g., transactional or financial records) may be retained for a longer period, up to 7 years or as required by applicable laws, regulations, or contractual obligations.

8.3.2. Deletion Criteria and Process:

a. Service Termination: When you terminate your account, personal data that is no longer necessary for the purposes for which it was collected will be deleted or irreversibly anonymized.

b. Automated Review: Our systems periodically review stored data and automatically initiate deletion or anonymization processes based on the established retention schedules.

c. Legal Hold: In instances where data must be retained to comply with legal, regulatory, or administrative requirements, such data will be securely stored and will not be used for any other purpose.

9. **Your Rights Under GDPR for EU Users**

As an EU user, you have specific rights under the General Data Protection Regulation (GDPR) regarding the personal data we process. These rights are designed to give you greater control over your information and ensure that your data is handled in a transparent and secure manner. In particular, you have the right to:

a. Access Your Data:
You have the right to request a complete copy of all personal data we hold about you, along with details regarding the purposes of processing, the categories of data processed, the recipients to whom the data has been or will be disclosed, the planned retention period, and the source of the data (if it was not provided by you).

b. Rectification:
If you believe that any of the personal data we hold about you is inaccurate or incomplete, you have the right to request that we correct or update your information.

c. Erasure ("Right to be Forgotten"):
You have the right to request the deletion of your personal data when, under certain conditions, the data is no longer necessary for the purposes for which it was collected, or if you withdraw your consent and there is no other legal basis for processing it. Please note that this right is subject to applicable legal obligations which may require us to retain certain data.

d. Restriction of Processing:
Under specific circumstances, you have the right to request that we limit the processing of your personal data. This means that while we may continue to store your data, we will not process it further until the restriction is lifted.

e. Data Portability:
You have the right to receive your personal data in a structured, commonly used, and machine-readable format. Furthermore, you have the right to transmit this data to another data controller where technically feasible.

f. Objection to Processing:
You have the right to object, at any time, to the processing of your personal data for direct marketing purposes, as well as for processing based on our legitimate interests. In such cases, we will cease processing your data unless we can demonstrate compelling legitimate grounds for the processing that override your interests, rights, and freedoms.

g. Withdrawal of Consent:
If our processing of your personal data is based on your consent, you have the right to withdraw that consent at any time. Withdrawal of consent will not affect the lawfulness of processing based on consent before its withdrawal.

h. Right to Lodge a Complaint:
If you believe that our processing of your personal data violates your rights under the GDPR, you have the right to file a complaint with a supervisory authority in the EU.

Exercising Your Rights

To exercise any of these rights, please contact us using the details provided below:

Contact Information:
Email: support@gemspace.com
Address: Marketspace Solutions OU, Harju maakond, Tallinn, Kesklinna linnaosa, Vesivärava tn 50-301, 10152, Republic of Estonia

Upon receiving your request, we will review it and respond within the timeframes required by applicable data protection laws.

By using the GemSpace platform, you acknowledge and consent to the processing of your personal data as described in this Privacy Policy and understand your rights under the GDPR.

10. Contact Information

If you have any questions, concerns, or inquiries regarding this Policy, the Platform, or any related matters, you may contact us using the following details:

General Inquiries & Support

For general questions, technical issues, or support-related inquiries, please contact our support team at:
Email: support@gemspace.com

Legal & Regulatory Matters

For legal inquiries, compliance matters, or official requests from regulatory authorities, please direct your correspondence to:
Email: support@gemspace.com

Business & Partnership Inquiries

For business collaborations, partnership opportunities, or media-related inquiries, please reach out to us at:
Email: support@gemspace.com

DSA Compliance & Content Moderation

For inquiries related to the Digital Services Act (DSA), content moderation, or reporting of illegal content, please contact:
Email: support@gemspace.com

Registered Office Address

Marketspace Solutions OU
Harju maakond, Tallinn, Kesklinna linnaosa, Vesivärava tn 50-301, 10152
Republic of Estonia

Please note that our support team primarily operates via email. We do not guarantee response times for inquiries sent by postal mail, and we may not process physical correspondence unless required by law. For urgent support matters, we recommend using our email channels to receive a timely response.

This Privacy Policy was last modified on August 13, 2025. We reserve the right to amend or update this Privacy Policy at any time, with or without prior notice, by posting the revised version on our Platform. Please check this page periodically for any changes. Your continued use of the Platform after the effective date of any modifications constitutes your acceptance of the updated Privacy Policy. If you do not agree with the revised Privacy Policy, you must discontinue your use of the Platform.